



CHAPTER ccvi.

An Act to confer power on the Scottish Ontario and Manitoba Land Company Limited for the repayment and reduction of their capital and for other purposes.

A.D. 1903.

[11th August 1903.]

WHEREAS the Scottish Ontario and Manitoba Land Company Limited (hereinafter called "the Company") was on the fifteenth day of December one thousand eight hundred and seventy-nine incorporated under the Companies Acts 1862 1867 and 1877 for the objects inter alia of the investment of money in the purchase of real or heritable or leasehold estate situated in the Dominion of Canada or of any interest therein and for the leasing selling or otherwise disposing of such property on instalment or other terms and the selling or otherwise disposing of any mortgages or other securities held for the price of any property sold by the Company :

And whereas the authorised capital of the Company was five hundred thousand pounds divided into fifty thousand shares of ten pounds each but the capital has since been reduced to four hundred and seventy-five thousand pounds divided into fifty thousand shares of nine pounds ten shillings each and twenty-three thousand and thirteen of the said shares have been issued and allotted upon each of which the sum of eight pounds ten shillings has been paid up the remaining shares being unissued :

And whereas the Company is authorised to reduce its capital under its articles of association as altered by a special resolution passed at an extraordinary general meeting held on the second day of June one thousand nine hundred and two and confirmed at an extraordinary general meeting held on the eighteenth day of June one thousand nine hundred and two :

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Company Limited Act, 1903.

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— And whereas the Company is owner of lands and other heritable and leasehold estate in Canada which it is desired to dispose of in detail and is also the holder of mortgages and other securities to a large amount representing the price of land or other property already sold but under the conditions prevailing in Canada the sale of such lands and property and the payment of the price of properties sold and the repayment of the said mortgages and other securities has to be extended over a considerable number of years and the Company each year receives payment of instalments to account thereof :

And whereas the Company is desirous of continuing the sale and realisation of their properties under the management of the directors and of applying the sums received on account of the said price and mortgages as received towards reduction of the paid-up capital by repaying to the shareholders from time to time portions of the paid-up capital but without going into liquidation or incurring the expense and delay involved in making a special application to the court on each occasion on which a payment is to be made :

And whereas the liabilities of the Company to creditors are unimportant in amount and do not exceed in all the sum of two thousand pounds :

And whereas it is just and reasonable in the circumstances that the Company should be authorised from time to time to divide among the shareholders in reduction of their shares any money received by the Company from the sale and realisation of its properties and the repayment of mortgages and other securities to the extent and subject to the provisions contained in this Act and that the capital of the Company should from time to time be reduced accordingly :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title.

1. This Act may be cited as the *Scottish Ontario and Manitoba Land Company Limited Act 1903.*

Repayment
and reduc-
tion of capi-
tal.

2. The directors of the Company may at any time and from time to time recommend to any general meeting of the shareholders of the Company that a sum of such specified amount as the said

directors shall think expedient shall be repaid to the shareholders rateably in proportion to their respective shares in the capital of the Company out of any money from time to time standing to the credit of the Company on account of the price of properties sold or mortgages or other securities repaid or other money belonging to the Company and in the event of the said general meeting passing a resolution to that effect the said payment shall be made in the manner and at the date fixed by the said resolution and the nominal value of and amount paid up on each issued share of the Company shall upon such repayment be reduced by the amount so repaid and the nominal value of each unissued share of the Company shall be reduced by a similar amount Section 53 of the Companies Act 1862 shall apply to any resolution passed under this section.

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3. Immediately after any such repayment of capital as mentioned in the last preceding section has been made the directors of the Company shall cause a minute containing the particulars required by section 15 of the Companies Act 1867 and section 4 of the Companies Act 1877 in the case of a reduction of capital effected under those Acts to be filed with the Registrar of Joint Stock Companies and upon production to him of the said minute the Registrar of Joint Stock Companies shall register the same and shall certify such registration under his hand and such certificate shall be conclusive evidence that the capital of the Company is such as is stated in the minute and no shareholder of the Company whether past or present shall from and after the registration of such minute be liable in respect of any share to any call or contribution exceeding in amount the difference if any between the amount which has been paid on such share and the amount of the share as fixed by the said minute.

Minute to be
registered.

4. The directors of the Company shall at least two months before making any repayment of capital under the provisions of this Act give notice in writing to every creditor or person claiming to be a creditor of the Company at the date of the said notice so far as known to them by registered letter addressed to the usual or last known address of such creditor or person intimating the intention to make such repayment and also intimating that the Company is prepared to pay the debt or claim of such creditor or person claiming to be a creditor as aforesaid or if such debt or claim or the full amount thereof respectively is not admitted by the Company that the Company is prepared to deposit the amount of such debt or claim in the principal office in Glasgow of an

Payment or
deposit of
debts and
claims.

A.D. 1903. — incorporated bank to be named in the said notice and in the event of any creditor or any person claiming to be a creditor intimating within one month from the date of such notice his desire that such payment or deposit as the case may be shall be made the directors of the Company shall not make any repayment of capital until the amount of such debt or claim has been paid or deposited as aforesaid.

Application
of deposits.

5. In the event of any deposit being made in terms of the immediately preceding section it shall be competent to the Company or to the creditor or claimant to whose debt or claim such deposit applies to apply to the court having jurisdiction to make an order for winding up the Company to have the sum deposited applied in payment of such debt or claim or if the full amount of such debt or claim is not admitted by the Company or is not such as the Company is willing to set apart or appropriate or if the debt or claim is future contingent or not ascertained to have the said sum in whole or in part repaid to the Company or left on deposit for such period and subject to such conditions as the court may specify and the court shall upon such application adjudicate upon the validity of the debt or claim in manner provided by section 14 of the Companies Act 1867 and shall have power to order the sum deposited to be applied in whole or in part in payment of such debt or claim or to be repaid in whole or in part to the Company or to be left on deposit for such period and to such extent and subject to such conditions as the court may deem just.

Total repay-
ments.

6. The total repayments to be made to the shareholders of the Company under the provisions of this Act shall not exceed seven pounds ten shillings per share.

Copy of Act
to be regis-
tered.

7. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily There shall be paid to the Registrar by the Company on such copy being registered and on registration of the minute referred to in section 3 of this Act the like fee as is for the time being payable under the Companies Act

1862 on registration of any document other than a memorandum A.D. 1903.
of association.

8. All costs charges and expenses preliminary to and of and Costs of Act.
incidental to the preparing applying for obtaining and passing of
this Act or otherwise in relation thereto shall be paid by the
Company.

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